

Court No. - 2

Case :- WRIT - C No. - 4124 of 2025

Petitioner :- Rabia Juneid And Others

Respondent :- U.P. Power Corporation Ltd. Lko. And Thru.
M.D. Others

Counsel for Petitioner :- Shiv Shankar Mishra, Shivanshi
Mishra, Yagyadatta Pathak

Counsel for Respondent :- Amit Kumar Dwivedi

Hon'ble Rajan Roy, J.

Hon'ble Om Prakash Shukla, J.

Considering the nature of order proposed to be passed, issuance of notice to the opposite party no. 4 is dispensed with.

Heard.

The petitioner no. 1 is the daughter-in-law of the opposite party no. 4. The petitioner no's. 2 and 3 are children of petitioner no. 1.

The opposite party no. 4 has given an application to the opposite party no. 2 for disconnection of the electricity connection granted at the premises in question which is existing in the name of her late husband. In these circumstances, the petitioners have come to Court.

The petitioner no. 1 has a dispute with the opposite party no. 4, and some proceedings under the Protection of Women from Domestic Violence Act, 2005 are pending.

Be that as it may, if the petitioners are in possession of the premises in question, a fact which will have to be verified by the opposite party no. 2, then, if the petitioner no. 1 moves an application for grant of prepaid electricity connection along with an indemnity bond referable to Paragraph 4.4 of the U.P. Electricity Supply Code, 2005, same shall be considered by the opposite party no. 2 and appropriate orders shall be passed thereon, if she is otherwise found to be eligible for grant of prepaid electricity connection. This order will not prejudice the rights, if any, of the opposite party no. 4 in respect of the premises in question or any other right. Before taking such decision, the opposite party no. 4 shall also be heard.

Our order shall not come in the way of the opposite party no. 2

in considering the application of the opposite party no. 4 for disconnection of the electricity connection, however, the application of the petitioner no. 1 for grant of prepaid electricity connection shall be considered simultaneously, and both the actions would be taken accordingly.

The writ petition is accordingly **disposed of**.

Order Date :- 30.4.2025

Lokesh Kumar

[Om Prakash Shukla, J.] [Rajan Roy, J.]